

8	Gomez vs. Harper's Pharmacy, Inc. 2023-01354034	Motion to Compel Production Off Calendar Request for Dismissal with Prejudice-Entire Action filed on 04/08/2025
9	Brown vs. General Motors, LLC 2024-01413627	Motion to Compel Production Plaintiff Jake Brown's Motion to Compel Further Responses by Defendant General Motors, LLC's to Request for Production of Documents, Set One, is CONTINUED to June 16, 2025 at 01:45 PM in Department C15. Plaintiff moves pursuant to <i>Code of Civil Procedure</i> § 2031.310 for an order compelling Defendant to provide further responses to Request for Production of Documents Nos. 1-9, 13-21, 24, 25, 27, 33-38, 41-51, and 53-93. Before filing a motion to compel further responses to an inspection demand, the moving party must engage in a good faith effort to informally resolve the dispute and file a declaration documenting such efforts with the motion. <i>Code Civ. Proc.</i> §§ 2016.040, & 2031.310(b)(2). Here, the Declaration of Erik Whitman fails to demonstrate any meaningful meet and confer prior to filing the motion. Counsel for Plaintiff sent one meet and confer letter and failed to respond to Defendant's letter or address its concerns regarding the discovery. Plaintiff's counsel did not even bother to call opposing counsel. The parties/counsel have not engaged in sufficient attempts to meet and confer. <i>Code Civ. Proc.</i> , § 2016.040; <i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1293 [Discovery Act requires moving party to declare he or she has made a serious attempt to obtain an informal resolution of each issue; rule designed to encourage parties to work out their differences informally to avoid necessity for formal order, which lessens burden on court and reduces unnecessary expenditure of resources by litigants]; <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 402 [central precept of Discovery Act that discovery be self-executing].

		The parties/counsel are ORDERED to engage in additional attempts to meet and confer in person, telephonically, or over remote videoconferences (not email) no later than May 9, 2025. The parties/counsel are ORDERED to file a JOINT STATUS REPORT indicating whether court intervention remains the only option to resolve this discovery dispute, and if so, why, no later than 9 court days before the hearing. Failure to comply with this order may result in sanctions against the non-compliant party and/or their counsel pursuant to <i>Code of Civil Procedure</i> section 177.5. The parties are strongly encouraged to resolve their discovery dispute without the need for court intervention. Plaintiff to give notice.
10	Biofire Diagnostics LLC vs. Pathlab Services Inc. 2022-01262822	Motion for Sanctions for Failure to obey Court Order Plaintiff/Cross-Defendant BioFire Diagnostics’ Motion for Sanctions is GRANTED in part and DENIED in part. Terminating sanctions are GRANTED against Defendant/Cross-Complainant PathLab Services, Inc. PathLab’s Cross-Complaint is dismissed and its answer to BioFire’s Complaint is stricken. The court may impose monetary, issue, evidence, or terminating sanctions on a party who misuses the discovery process. <i>Code of Civil Procedure</i> § 2023.030(a)-(d).) Failing to respond to discovery and disobeying a court order are misuses of the discovery process. <i>Code Civ. Proc.</i> § 2023.010(d)(g). Here, PathLab has failed to provide responses and pay the sanction as ordered by this Court on 7/15/24. Thus, PathLab has failed to respond to discovery and disobeyed a court order. Therefore, PathLab’s conduct is sanctionable. <u>Nonmonetary Sanctions</u> PathLab’s conduct warrants nonmonetary sanctions. PathLab has not responded to either the Motion to Compel or this Motion. Monetary